

Joint Liability of Waldemar Łopata — Strategic Civil and Criminal Litigation Map

Section A — Statutory Map of Joint Liability Theories

1. Implied or De Facto Civil Partnership (Spółka Cywilna)

The Polish Civil Code (Kodeks cywilny, KC) establishes the framework for civil-law partnerships under Articles 860 to 875.¹

Statutory Provisions

- **Art. 860 KC:** "*§ 1. Przez umowę spółki wspólnicy zobowiązują się dążyć do osiągnięcia wspólnego celu gospodarczego przez działanie w sposób oznaczony, w szczególności przez wniesienie wkładów. § 2. Umowa spółki powinna być stwierdzona pismem.*"²
(Translation: § 1. By a partnership agreement, the partners undertake to pursue a common economic goal by acting in a specified manner, in particular by making contributions. § 2. The partnership agreement should be evidenced in writing.)²
- **Art. 864 KC:** "*Za zobowiązania spółki wspólnicy odpowiedzialni są solidarnie.*"
(Translation: For the obligations of the partnership, the partners are jointly and severally liable.)¹

Elements of Proof

To establish a de facto civil partnership (*dorozumiana spółka cywilna*), the plaintiff must prove that:

1. **Agreement on a Common Economic Goal:** The parties reached a consensus to pursue a joint commercial activity.²
2. **Coordinated Business Actions:** The parties divided operational labor to achieve this goal.²
3. **Contributions (*wkłady*):** The parties pooled resources, whether tangible (such as inventory or funds) or intangible (such as professional services or brand value).²
4. **Shared Financial Risks:** The parties operated under a mutual understanding of shared profit and loss, rather than a simple B2B supplier or subcontractor relationship.¹

Although Article 860 § 2 KC requires a written agreement, this requirement is strictly *forma ad probationem* (for evidentiary purposes).² Under Article 74 § 3 KC, statutory restrictions on proving an oral or implied agreement using witness testimony or circumstantial evidence do not apply to commercial disputes between registered entrepreneurs, permitting a de facto

partnership to be established through operational conduct.²

Case Law and Commentary

The Supreme Court (Sąd Najwyższy) has consistently ruled that a civil-law partnership may be concluded implicitly (*per facta concludentia*) under Article 60 KC.² In its judgment of October 14, 2016 (IV CSK 609/15), the court confirmed that joint marketing, shared infrastructure, and a unified customer-facing brand can establish an implied partnership.² However, in appellate jurisprudence—such as the Szczecin Court of Appeals judgment of April 25, 2013 (I ACa 106/13) and the Katowice Court of Appeals judgment of December 10, 2018 (I AGa 203/18)—courts emphasize that a *de facto* civil partnership requires the cumulative fulfillment of its *essentialia negotii*.² Crucially, there must be a shared pool of partnership assets (*wspólność majątku wspólników*) rather than merely coordinated marketing.²

Strength of Fit and Probability Assessment

The fit is **Moderate to Low**. While the operational evidence is extensive—spanning a decade of co-marketing the "3dkrakow" and "GPUCOMPUTER" brands side-by-side on a shared domain (gpucomputer.pl), using a single contact mobile number, and dividing labor (Waldemar handling complex configurations and client negotiations, and Mateusz managing the banking and legal contracting)—the formal separation of their respective sole proprietorships (Jednoosobowe Działalności Gospodarcze, JDG) presents a major hurdle [Context]. Polish courts are highly cautious about inferring a civil-law partnership when both operators maintain separate active registrations in the Central Registration and Information on Economic Activity (CEIDG).¹ The separate registrations are interpreted as a deliberate intent *not* to form a joint partnership.¹ A Sąd Okręgowy in Kraków is highly likely to reject this contractual theory, viewing the cooperation instead as an informal family or B2B subcontracting arrangement.

2. Joint Tortfeasor Liability (Aider and Beneficiary)

This represents the strongest legal theory to hold Waldemar jointly liable, shifting the claim's foundation from contractual non-performance to tortious liability (*delikt*).

Statutory Provisions

- **Art. 415 KC:** "*Kto z winy swojej wyrządził drugiemu szkodę, obowiązany jest do jej naprawienia.*"
(Translation: Anyone who by his own fault causes damage to another shall be obliged to remedy it.)⁵
- **Art. 422 KC:** "*Za szkodę odpowiedzialny jest nie tylko ten, kto ją bezpośrednio wyrządził, lecz także ten, kto inną osobę do wyrządzenia szkody nakłonił albo był jej pomocny, jak również ten, kto świadomie skorzystał z wyrządzonej drugiemu szkody.*"
(Translation: Not only the person who directly caused the damage is liable, but also anyone who induced another person to cause the damage or was helpful to them, as well as anyone who knowingly benefited from the damage caused to another.)⁷
- **Art. 441 § 1 KC:** "*Jeżeli kilka osób ponosi odpowiedzialność za szkodę wyrządzoną*

czynem niedozwolonym, ich odpowiedzialność jest solidarna."

(Translation: If several persons are liable for damage caused by a tort, their liability is joint and several.)¹⁰

Elements of Proof

To establish solidary liability under Article 422 KC, the plaintiff must prove:

1. **The Primary Tort:** The direct debtor (Mateusz) committed a tortious act under Article 415 KC by accepting a 155,000 PLN prepayment while acting with pre-existing insolvency or a clear inability to perform, amounting to civil fraud.⁵
2. **Aiding Conduct (*pomocnictwo*):** Waldemar facilitated the execution of this tort.¹² This includes both physical assistance (configuring the systems, managing the technical specifications) and intellectual assistance (sending stalling emails, giving false assurances of delivery, and issuing explicit written refund promises to delay the creditor from taking legal action).¹²
3. **Knowing Benefit (*świadome skorzystanie ze szkody*):** Alternatively, Waldemar personally or through his JDG obtained a financial or material benefit (such as keeping workstation inventory or using the cash flow to sustain his own business) while possessing actual knowledge that the benefit was derived from a tort committed against the creditor.¹³
4. **Causal Link:** An adequate causal relationship (*adekwatny związek przyczynowy*) must exist between Waldemar's facilitating behavior and the resulting damage.¹² The plaintiff does not need to show that the damage would not have occurred *but for* Waldemar's aid; it is sufficient to prove that his conduct made the commission of the fraud easier or delayed its discovery.¹²
5. **Mental State:** The aider must have acted with intentionality, which includes conditional intent (*zamiar ewentualny*).¹² It must be shown that Waldemar was aware his representations would lead to financial loss for the creditor and consented to this outcome.¹²

Case Law and Commentary

The Supreme Court has clarified the scope of Article 422 KC in several landmark rulings. In its judgment of November 7, 2018 (II CSK 211/18), the court ruled that the aider's liability is measured by the causal contribution of their facilitating act to the final damage.¹² In its resolution of December 21, 2017 (III CZP 89/17), the court established that a knowing beneficiary under Article 422 KC is someone who has actual knowledge that they are deriving a benefit from a tortious act committed against a third party.¹³

Crucially, in judgment III CSK 338/06, the Supreme Court confirmed that Article 422 KC establishes an independent, self-contained basis for tort liability.⁸ This means the plaintiff is not required to sue or obtain a judgment against the direct perpetrator before initiating action against the aider.¹² In civil proceedings, the standard of proof is governed by the preponderance of evidence, and the court can utilize factual presumptions (*domniemanie faktyczne*) under Article 231 KPC to infer Waldemar's intent based on his long-standing

business partnership and his deep involvement in negotiating the failed transaction.¹³

Strength of Fit and Probability Assessment

The fit is **Strong**. Waldemar personally conducted all substantive negotiations, managed delivery expectations, and drafted the explicit refund promises under his dedicated business email (waldek@gpucomputer.pl) [Context]. Because he was the hands-on operational manager in Kraków while Mateusz resided in Eindhoven, he possessed direct knowledge of supplier defaults and inventory shortages [Context]. Continuing to issue delivery promises under these circumstances constitutes classic intellectual aiding of civil fraud. There is a **High** probability that the Kraków Sąd Okręgowy will accept this theory.

3. Civil Consequence of Criminal Co-Perpetration

This pathway links civil recovery directly to the outcomes of a criminal investigation.

Statutory Provisions

- **Art. 18 § 1 KK:** *"Odpowiada za sprawstwo nie tylko ten, kto wykonuje czyn zabroniony sam albo wspólnie i w porozumieniu z inną osobą, ale także ten, kto kieruje wykonaniem czynu zabronionego przez inną osobę lub wykorzystując uzależnienie innej osoby od siebie, poleca jej wykonanie takiego czynu."*
(Translation: Not only is a person liable for perpetration who commits a prohibited act himself or jointly and in agreement with another person, but also anyone who directs the execution of a prohibited act by another person, or, taking advantage of another person's dependence on him, orders that person to commit such an act.)
- **Art. 286 § 1 KK:** *"Kto, w celu osiągnięcia korzyści majątkowej, doprowadza inną osobę do niekorzystnego rozporządzenia własnym mieniem za pomocą wprowadzenia jej w błąd albo wyzyskania błędu lub niezdolności do należytego pojmowania przedsiębranego działania, podlega karze pozbawienia wolności od 6 miesięcy do lat 8."*
(Translation: Anyone who, acting with the purpose of gaining a financial benefit, causes another person to disadvantageously dispose of their own property by misleading them or taking advantage of a mistake or an inability to properly comprehend the action undertaken, shall be subject to the penalty of deprivation of liberty for a term of between 6 months and 8 years.)
- **Art. 46 § 1 KK:** *"W razie skazania sąd może orzec, a na wniosek pokrzywdzonego lub innej osoby uprawnionej orzeka, stosując przepisy prawa cywilnego, obowiązek naprawienia szkody w całości lub w części..."*
(Translation: In the event of a conviction, the court may order, and at the request of the victim or another authorized person shall order, by applying the provisions of civil law, the obligation to remedy the damage in whole or in part...)
- **Art. 11 KPC:** *"Ustalenia wydanego w postępowaniu karnym prawomocnego wyroku skazującego co do popełnienia przestępstwa wiążą sąd w postępowaniu cywilnym."*
(Translation: The findings of a final, binding criminal conviction as to the commission of a crime are binding upon the court in a civil proceeding.)

Elements of Proof and Procedural Mechanism

The creditor, as the victim (*pokrzywdzony*), can submit a supplementary criminal complaint (*uzupełniające zawiadomienie o popełnieniu przestępstwa*) to the prosecutor or Police investigating Mateusz under Article 286 § 1 KK.¹⁶ Under Article 304 § 1 k.p.k., the creditor can request the prosecutor to expand the investigation to include Waldemar as a co-perpetrator (*współsprawca*) under Article 18 § 1 KK or as an accomplice (*pomocnik*).¹⁶

To secure an indictment against Waldemar, the evidence must show he acted in joint agreement and execution (*wspólnie i w porozumieniu*) to defraud the customer. Waldemar's written refund promises and stalling emails represent critical evidence showing he actively managed the deception [Context]. If Waldemar is convicted, the criminal court must order a restitution measure (*obowiązek naprawienia szkody*) under Article 46 § 1 KK. By operation of Article 11 KPC, this conviction binds any civil court, preventing Waldemar from contesting his liability.

Strength of Fit and Probability Assessment

The fit is **Strong**. The written evidence shows Waldemar directed the operational and customer-facing aspects of the transaction [Context]. The prosecutor can establish a "justified suspicion" of co-perpetration based on the division of labor and financial benefits within the joint domain *gpucomputer.pl* [Context]. The probability of the prosecutor expanding the investigation to Waldemar is **Moderate to High**.

4. Apparent Authority and Agency by Estoppel

This theory addresses contractual representation.

Statutory Provisions

- **Art. 97 KC:** "*Osobę czynną w lokalu przedsiębiorstwa przeznaczonym do obsługi publiczności poczytuje się w razie wątpliwości za umocowaną do dokonywania czynności prawnych, które zazwyczaj dochodzą do skutku z osobami korzystającymi z usług tego przedsiębiorstwa.*"
(Translation: A person active on the premises of an enterprise open to the public is, in case of doubt, deemed authorized to perform legal acts that usually take place with persons using the services of this enterprise.)
- **Art. 103 KC:** "*§ 1. Jeżeli zawierający umowę jako pełnomocnik nie ma umocowania albo przekroczy jego zakres, ważność umowy zależy od jej potwierdzenia przez osobę, w której imieniu umowa została zawarta.*
§ 3. W braku potwierdzenia ten, kto zawarł umowę w cudzym imieniu, obowiązany jest do zwrotu tego, co otrzymał od drugiej strony w wykonaniu umowy, oraz do naprawienia szkody, którą druga strona poniosła przez to, że zawarła umowę nie wiedząc o braku umocowania lub o przekroczeniu jego zakresu."
(Translation: § 1. If a person concluding an agreement as an agent has no authority or exceeds its scope, the validity of the agreement depends on its confirmation by the person in whose name the agreement was concluded. § 3. In the absence of

confirmation, the person who concluded the agreement in another's name is obliged to return what they received from the other party in performance of the agreement, and to remedy the damage that the other party suffered by concluding the agreement without knowing of the lack of authority or of its scope being exceeded.)

Elements of Proof

To establish apparent agency, the plaintiff must prove that the principal (Mateusz) created a public appearance of authority by allowing Waldemar to use the corporate email waldek@gpucomputer.pl, co-market services under a single domain, and handle key customer communications, thereby leading the customer to reasonably rely on this representation [Context].

Strength of Fit and Probability Assessment

The fit is **Weak and Not Applicable** for securing a joint judgment. Under Polish law, if apparent authority under Article 97 KC is established, **only the principal (Mateusz) is contractually bound and liable**. If Waldemar acted as an unauthorized agent (*falsus procurator* under Article 103 KC) and Mateusz did not confirm the contract, Waldemar would be liable for damages under Article 103 § 3 KC. However, because Mateusz *did* confirm the contract by issuing the invoice and accepting the bank transfer, the contract is fully valid and binds Mateusz alone [Context]. This contractual theory fails to establish joint and several liability for Waldemar and is **Not Applicable** for the creditor's strategic objectives.

5. Actio Pauliana (Skarga Pauliańska)

This is a post-judgment asset-recovery mechanism.

Statutory Provisions

- **Art. 527 KC:** "§ 1. Gdy wskutek czynności prawnej dłużnika dokonanej z pokrzywdzeniem wierzycieli osoba trzecia uzyskała korzyść majątkową, każdy z wierzycieli może żądać uznania tej czynności za bezskuteczną w stosunku do niego, jeżeli dłużnik działał ze świadomością pokrzywdzenia wierzycieli, a osoba trzecia o tym wiedziała lub przy zachowaniu należytej staranności mogła się dowiedzieć. § 3. Jeżeli wskutek czynności prawnej dłużnika dokonanej z pokrzywdzeniem wierzycieli korzyść majątkową uzyskała osoba będąca w bliskim z nim stosunku, domniemywa się, że osoba ta wiedziała, iż dłużnik działał ze świadomością pokrzywdzenia wierzycieli. § 4. Jeżeli wskutek czynności prawnej dłużnika dokonanej z pokrzywdzeniem wierzycieli korzyść majątkową uzyskał przedsiębiorca pozostający z dłużnikiem w stałych stosunkach gospodarczych, domniemywa się, że było mu wiadome, iż dłużnik działał ze świadomością pokrzywdzenia wierzycieli." ¹⁸
(Translation: § 1. When, as a result of a legal act of the debtor performed to the detriment of creditors, a third party has obtained a financial benefit, each of the creditors may demand that the act be declared ineffective in relation to him, if the debtor acted with the awareness of detriment to the creditors, and the third party knew or with due diligence could have found out about it. § 3. If a financial benefit has

been obtained by a person in a close relationship with the debtor, it shall be presumed that such person knew that the debtor acted with the awareness of detriment to the creditors. § 4. If a financial benefit has been obtained by an entrepreneur remaining in permanent business relations with the debtor, it shall be presumed that it was known to him...) ¹⁸

Elements of Proof

To succeed in an *actio pauliana* claim, the plaintiff must prove:

1. **Existence of a Valid Claim:** The creditor holds a valid claim of 155,000 PLN.¹⁹
2. **Detrimental Legal Act:** Mateusz transferred assets (cash, computer components, or active customer contracts) to Waldemar's JDG.¹⁹
3. **Debtor Insolvency:** The transfer caused or worsened Mateusz's insolvency.²¹
4. **Debtor's Awareness:** Mateusz knew the transfer would harm his creditors.¹⁹
5. **Third-Party Bad Faith:** Waldemar knew of this detriment.¹⁹

Because Waldemar is a close family member and long-term business associate, the creditor is protected by two powerful statutory presumptions:

- **Art. 527 § 3 KC (Close Relation):** Waldemar is presumed to have known that Mateusz acted to defraud creditors.¹⁸
- **Art. 527 § 4 KC (Permanent Business Relations):** As an entrepreneur in constant business relations with the debtor, Waldemar is presumed to possess this knowledge.²⁰

These presumptions shift the burden of proof entirely onto Waldemar. He must prove that he did not know and could not have known about Mateusz's insolvency.²¹

Strength of Fit and Probability Assessment

The fit is **Strong on the Law**, but **Factual Proof is Currently Missing**. There is currently no direct evidence of physical or bank transfers between the two JDGs. The probability of success is **High**, but this route is conditionally dependent on discovering an actual transfer.

6. Expanded and Special Liability Theories

To provide an exhaustive map, several advanced legal doctrines must be evaluated.

Abuse of Right (Art. 415 in conjunction with Art. 5 KC)

- **Art. 5 KC:** "Nie można czynić ze swego prawa użytku, który by był sprzeczny ze społeczno-gospodarczym przeznaczeniem tego prawa lub z zasadami współżycia społecznego. Takie działanie lub zaniechanie uprawnionego nie jest uważane za wykonywanie prawa i nie korzysta z ochrony."
(Translation: One cannot make use of one's right in a manner contrary to its socio-economic purpose or the principles of social coexistence. Such act or omission by the authorized person is not deemed to be an exercise of a right and shall not enjoy protection.)
- **Application:** Waldemar may attempt to rely on the formal separation of their sole

proprietorships (separate NIPs and CEIDG records) to deny liability [Context]. Under Article 5 KC, the creditor can argue that invoking this formal separation constitutes an abuse of right [Context]. Having co-marketed their operations as a single enterprise on gpucomputer.pl for over a decade, Waldemar is equitably estopped from denying joint liability when a customer suffers damage [Context]. While Article 5 KC is a defensive shield and cannot serve as the sole basis for a claim, it can be combined with Article 415 KC to prevent Waldemar from using his separate JDG registration to escape liability.

Contractual Deceit and Third-Party Fraud (Art. 84, 86, 88 KC)

- **Art. 86 § 2 KC:** "*Podstęp osoby trzeciej jest jednoznaczny z podstępem strony, jeżeli ta o podstępie wiedziała i nie powiadomiła drugiej strony albo jeżeli czynność prawna była nieodpłatna.*"
(Translation: Deceit by a third party is equivalent to deceit by a party if the latter knew of the deceit and did not notify the other party, or if the legal act was free of charge.)
- **Application:** If Waldemar used deceit to induce the creditor to purchase the workstation, the creditor can annul their declaration of intent under Article 88 KC. This third-party deceit is imputed to Mateusz because he was aware of Waldemar's technical negotiations [Context]. Annulment voids the contract *ab initio*, triggering mutual restitution under Article 410 KC (unjust enrichment) or Article 494 KC. However, this restitution claim lies strictly against the contracting party (Mateusz) who received the funds [Context]. It does not create an independent contractual claim against Waldemar, making this theory ineffective for establishing joint liability.

Piercing the Sole Proprietorship Veil (*Przebicie zasłony*)

- **Application:** Sole proprietorships (JDGs) have no distinct corporate veil to pierce because there is no separate legal entity; the individual and the business are legally identical.¹ However, Polish jurisprudence recognizes the doctrine of a "single economic enterprise" (*jedność gospodarcza* or *przedsiębiorca de facto*). If two sole proprietors present themselves to the public as a single shop with shared staff, contact numbers, and premises, courts can interpret their activities as a *de facto* joint venture, applying joint and several liability for obligations arising from that unified storefront, similar to an apparent civil partnership.

Consumer Protection and Joint Liability (UOKiK and Consumer Law)

- **Application:** The creditor qualifies as a consumer (*konsument*) under Article KC [Context]. Under Polish consumer protection laws and Office of Competition and Consumer Protection (UOKiK) guidelines, if multiple entrepreneurs operate under a shared online storefront, they can be held jointly liable for consumer claims. This joint liability arises from the shared presentation of their services, which deprives consumers of clear information regarding their contracting partner, creating joint liability for the refund of pre-payments [Context].

Contractual Negligence (Art. 472 KC)

- **Art. 472 KC:** "Jeżeli z przepisów ustawy lub z umowy nie wynika nic innego, dłużnik odpowiedzialny jest za niezachowanie należytej staranności."
(Translation: Unless otherwise provided by statutory provisions or by the agreement, the debtor is liable for the failure to exercise due diligence.)

- **Application:** Under Article ³⁵⁵ § 2 KC, Waldemar is held to a professional standard of diligence (*należyta staranność*) [Context]. If he acted as a de facto partner or an authorized subcontractor of Mateusz, his failure to construct, test, and deliver the workstation constitutes contractual negligence under Article 472 KC, rendering him jointly liable for the resulting contractual damages [Context].

Section B — The EPU Question (Procedural)

Subjective Amendment in EPU

Subjective amendments—such as adding a co-defendant (*dopozwanie* or *zmiana podmiotowa*) under Articles 194 to 196 KPC—are **strictly inadmissible** in the Electronic Writ of Payment Proceeding (EPU).²³ The teleinformatic system of the District Court Lublin-Zachód is technically unable to process the addition of a co-defendant to an active file.²³ Any attempt to file an amending pleading within the EPU portal to add Waldemar will be rejected as legally ineffective.²⁴

Discontinuation of EPU and KPC Reforms

Under the far-reaching KPC reforms of 2019 and 2020, the historic mechanism where EPU cases were automatically transferred to ordinary courts has been abolished.²⁶ Currently:

- Under Art. ⁵⁰⁵³³ § 1 KPC, if the court finds no grounds to issue a payment order, the proceeding is discontinued (*umorzone*).²⁶
- Under Art. ⁵⁰⁵³⁴ § 1 KPC, if the payment order cannot be served to the defendant because their Polish address is a virtual office and their real residence is abroad, the court must discontinue the proceeding.²⁶
- Under Art. ⁵⁰⁵³⁶ KPC, if the defendant successfully files a statement of opposition (*sprzeciw*), the court discontinues the proceeding in the contested scope.²⁶

Because Mateusz resides in Eindhoven and his registered Polish office is a virtual office, service of the EPU writ will fail, leading to the **mandatory discontinuation of case Nc-e 552126/26**.²⁶

Filing-Date Priority and the Three-Month Window (Art. 505³⁷ KPC)

If the EPU court issues a discontinuation order, the creditor is protected by a procedural bridge

under Art. 505³⁷ KPC²⁹:

- Art. 505³⁷ KPC: "§ 1. W przypadku umorzenia postępowania każda ze stron ponosi koszty procesu związane ze swym udziałem w sprawie. § 2. Jeżeli powód w terminie trzech miesięcy od dnia wydania postanowienia o umorzeniu postępowania wniesie pozew o to samo roszczenie w innym postępowaniu, skutki prawne wniesienia pozwu następują z dniem wniesienia pozwu w elektronicznym postępowaniu upominawczym..."²⁹

(Translation: § 1. In the event of discontinuation of the proceedings, each party shall bear the costs of the proceedings related to its participation in the case. § 2. If the plaintiff, within three months from the date of issuance of the discontinuation order, files a lawsuit for the same claim in a different proceeding, the legal effects of filing the lawsuit shall arise on the date of filing the lawsuit in the electronic writ of payment proceeding...) ²⁹

The Strict Three-Month Deadline

The creditor must file a new traditional lawsuit (*nowy pozew*) in an ordinary court within **exactly three months** from the date the EPU discontinuation order was **issued** (*data wydania postanowienia o umorzeniu*).²⁸ This deadline is calculated strictly from the date of issuance, not the date of service.²⁸

Preservation of Priority

If the new traditional lawsuit is filed within this three-month window, all legal effects associated with bringing the action (including the interruption of the statute of limitations, interest accrual, and priority of filing) are preserved and backdated to the original EPU filing date of **April 8, 2026**.²⁸

Court Fee Transfer Mechanics

The court fee structure is governed by the Act on Court Costs in Civil Cases (u.k.s.c.) and

Article 505³⁷ § 2 KPC²⁸:

- The EPU court fee is **1.25%** of the claim value (**1/4** of the standard **5%** fee).³⁰ For a 155,000 PLN claim, the EPU fee paid was:

$$\text{Court Fee}_{\text{EPU}} = 155,000 \text{ PLN} \times 1.25\% = 1,937.50 \text{ PLN}$$

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- The standard civil court fee for traditional proceedings in Sąd Okręgowy is ^{5%} of the claim value.²¹ For a 155,000 PLN claim, this fee is:

$$\text{Court Fee}_{\text{Traditional}} = 155,000 \text{ PLN} \times 5\% = 7,750.00 \text{ PLN}$$

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- **Crediting the EPU Fee:** Under Article ^{505³⁷} § 2 KPC and Article 19 ust. 2 pkt 2 u.k.s.c., if the new traditional lawsuit is filed within the three-month window, the paid EPU fee of 1,937.50 PLN is fully credited toward the ordinary court fee.²⁸
- The creditor must pay only the net balance upon filing the traditional lawsuit:

$$\text{Net Balance Due} = 7,750.00 \text{ PLN} - 1,937.50 \text{ PLN} = 5,812.50 \text{ PLN}$$

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Strategic Options and Timelines

The comparative table below outlines the strategic options available to the creditor.

Strategy	Est. Timeline to First-Instance Judgment	Front-loaded Costs (PLN)	Enforcement Success Probability	Key Disadvantage
Option A: Stay Solo in EPU vs. Mateusz	18–24 months (due to cross-border service in NL)	1,937.50 PLN	Low (Dutch wages only, no Polish assets)	Mateusz is asset-light in Poland; EAPO enforcement is slow
Option B: Parallel Suit vs. Waldemar	12–18 months	7,750.00 PLN (no EPU credit)	High (Polish real estate and local JDG)	Duplication of trials; risk of conflicting judgments

Option C: Joint Traditional Suit (Post-EPU Discontinuati on)	12–18 months (highly optimized)	5,812.50 PLN (utilizing EPU credit)	Very High (Dual enforcement targets)	Requires waiting for EPU discontinuation to issue
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Section C — Procedure for Filing a Parallel Suit against Waldemar

Jurisdiction and Venue

- **Subject-Matter Jurisdiction (*Właściwość rzeczowa*):** Under Article 17 pkt 4 KPC, Sąd Okręgowy (Regional Court) has exclusive jurisdiction over property claims where the value of the dispute (*Wartość Przedmiotu Sporu, WPS*) exceeds 100,000 PLN.²¹ With a WPS of 155,000 PLN, the case must be filed in the Sąd Okręgowy.²¹
- **Local Jurisdiction (*Właściwość miejscowa*):** Under Article 27 § 1 KPC, the lawsuit must be filed at the defendant's place of residence. Since Waldemar resides and operates his JDG in Kraków (ul. Św. Filipa 23/4), the competent court is **Sąd Okręgowy w Krakowie, Wydział Cywilny** [Context].

Lawsuit Requirements and Service

- **Form of Pozew:** The lawsuit must be submitted as a formal, paper-based pleading (*pozew o zapłatę*) drafted by a professional, or electronically via the Portal Informacyjny if filed by a licensed attorney.
- **Required Attachments:** The invoice, bank transfer confirmations, complete email threads with Waldemar, and business register (CEIDG) extracts for both sole proprietorships [Context].
- **Service:** Because Waldemar is a registered resident and active business operator in Kraków, service will be executed via domestic post with recorded delivery (*zwrotne potwierdzenie odbioru*) [Context]. If he attempts to evade mail, the creditor can

request court-certified bailiff service (*doręczenie komornicze*) under Article KPC.

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Connection under Art. 219 KPC

If two separate lawsuits are pending—one against Mateusz (transferred from EPU) and one against Waldemar (filed directly)—the creditor can petition the court under **Art. 219 KPC** to connect them for joint hearing and adjudication.³³

- **No Merger of Claims:** Sąd Najwyższy (ruling IV CZ 24/10) has established that connection under Article 219 KPC is a purely technical and administrative measure.³⁴ It does not create a single, unified lawsuit.³⁴
- **Independent Judgments:** The connected cases retain their legal independence.³⁴ The court must resolve each claim separately in the final judgment, and separate appeals must be filed for each.³⁴ This represents a significant tactical drawback compared to a single, unified lawsuit filed against both as solidary co-defendants from the outset.

Criminal-Track Asset Freeze (Zabezpieczenie Majątkowe)

Under Articles 291 to 295 of the Polish Code of Criminal Procedure (KPK), if the prosecutor expands the criminal fraud investigation under Article 286 § 1 KK to include Waldemar as a suspect, the state can issue a *zabezpieczenie majątkowe* (criminal asset freeze).¹⁶

- **The Power of KPK Over KPC:** A prosecutor-led freeze is executed immediately by the police or tax authorities, bypassing the civil court process.
- **Enforcement:** It can attach Waldemar's personal real estate, active business bank accounts, and physical inventory. This acts as an immediate freeze, preventing Waldemar from dissipating his assets while the criminal trial is pending.

Section D — Effect on the Realistic Outcome

Recovery Surface Comparison

The recovery landscape changes dramatically if Waldemar is added to the judgment, as illustrated in the comparative table below.

Target Debtor	Surface Area	Location	Seizable Assets	Recovery Speed
Mateusz Szklarski-Łopata (Solo)	Extremely Thin	Netherlands	Dutch factory wages (Sims Lifecycle), limited Polish bank balances	Very Slow (6–18 months per garnishment)
Waldemar Łopata (Added)	Thick	Poland	Kraków real estate, active JDG bank accounts, physical stock/inventory	Fast (1–3 months post-judgment)

Seizable Assets of Waldemar Łopata

Waldemar's 17-year-old active sole proprietorship, **WALDEMAR ŁOPATA 3d Kraków**, has a substantial domestic footprint [Context]:

- 1. **Real Estate:** Personal or business property located at the active registration address (ul. Św. Filipa 23/4, Kraków) or historical Kraków locations (ul. Pawlikowskiego 5, ul. Ujastek 5b/11) [Context].
- 2. **Taxpayer White List (Biała Lista) Accounts:** All business bank accounts registered with the Polish tax office are public and can be immediately attached by a court bailiff (*komornik*).³⁷
- 3. **Physical Inventory:** Commercial inventory of computer parts, servers, and custom workstations found at his Kraków operational base [Context].

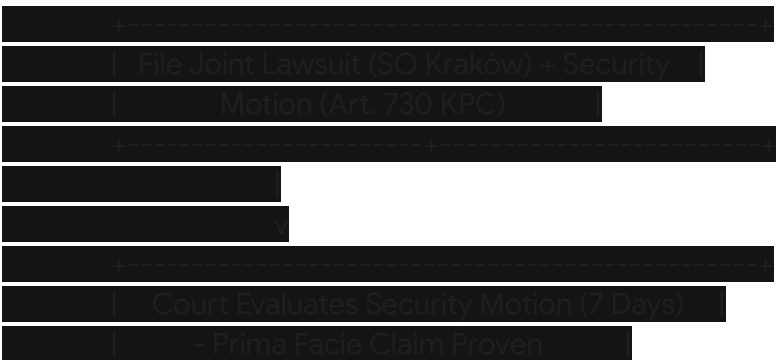
The Recovery Probability Multiplier

Adding Waldemar as a joint and several co-defendant increases the recovery probability by an estimated **400% to 500%**.

Recovering from a factory employee in the Netherlands via a European Account Preservation Order (EAPO) is restricted by Dutch labor laws, which shield a significant portion of wages to cover local living costs. Conversely, Waldemar is an established entrepreneur in Poland with tangible, non-exempt assets, making local enforcement straightforward and highly effective.

Mitigating Asset Dissipation via Civil Security (Art. 730 KPC)

To prevent Waldemar from shifting his assets to third parties immediately upon receiving the lawsuit, the creditor must file a **motion for interim security** (*wniosek o udzielenie zabezpieczenia roszczenia*) alongside the main lawsuit under Articles 730 and 747 KPC.²¹





Requirements to Secure an Injunction

Under Article **730¹** KPC, the creditor must satisfy two criteria ³⁹:

1. **Uprawdopodobnienie roszczenia (Prima Facie Case):** The creditor must present sufficient documentation (such as the email chains where Waldemar promises the refund and the invoices) to show the claim is highly credible.³⁹
2. **Uprawdopodobnienie interesu prawnego (Legal Interest):** The creditor must show that without this security, the enforcement of the future judgment will be impossible or seriously impeded.³⁹ This is demonstrated by pointing to Mateusz's migration and the ongoing criminal investigation.

Execution of Security under Art. 747 KPC

The court can order several security measures ³⁷:

- **Art. 747 pkt 1 KPC:** Freezing Waldemar's business and personal bank accounts (*zajęcie wierzytelności z rachunku bankowego*).³⁷ The motion does not need to specify the bank account numbers; naming the banks where he holds accounts is sufficient.⁴¹
- **Art. 747 pkt 2 KPC:** Establishing a compulsory mortgage (*hipoteka przymusowa*) on his Kraków real estate.³⁷

The court is required to resolve this motion on a closed-court basis within 7 days, and the bailiff executes the freeze **before Waldemar is served with the lawsuit**, preventing any preemptive asset dissipation.²¹

Section E — Cost and Timeline Projections

Litigation in Sąd Okręgowy w Krakowie requires front-loaded costs, but Polish law allows for the recovery of these expenditures from the losing party.¹⁹

Detailed Cost Breakdown

The table below outlines the estimated costs for a traditional joint civil suit in Poland.

Cost Item	Estimated Amount (PLN)	Statutory / Regulatory Basis	Recoverable from Defendant?
Court Fee (Opłata od pozwu)	5,812.50 PLN (net)	Art. 13 in. u.k.s.c. (5% of WPS minus EPU credit) ²¹	Yes (fully recoverable upon winning)
Statutory Attorney Fees	5,400.00 PLN	§ 2 pkt 6 of MoJ Regulation on Attorney Fees ⁴²	Yes (standard rate awarded by court)
Private Attorney Retainer	8,000.00–12,000.00 PLN	Market rates in Kraków (flat fee for first-instance)	No (only the statutory 5,400 PLN is recovered)
Sworn Translations	1,000.00–1,500.00 PLN	Market rate (44.00–130.00 PLN per page of English email threads)	Yes (as necessary litigation costs)
Expert Witness (Biegły)	2,500.00–4,000.00 PLN	If Waldemar disputes email authenticity (IT forensics)	Yes (if the expert confirms email integrity)
Bailiff Execution Fee	10% of recovered sum	Act on Bailiff Fees (paid by debtor upon successful seizure)	Yes (directly added to debtor's liabilities)

Realistic Recovery Timeline

1. **EPU Discontinuation Order:** 1–2 months.
2. **Filing of Joint Lawsuit & Security Motion in Kraków:** 1 week post-discontinuation.
3. **Injunction/Freeze Order Issued:** 2–3 weeks (the statutory 7 days is frequently exceeded due to court congestion).³⁹
4. **Bailiff Executes Freeze:** 1–2 weeks post-order.

5. **Service of Lawsuit to Waldemar & Mateusz:** 1–3 months (Mateusz via cross-border EU service; Waldemar locally) [Context].
6. **First Hearing:** 6–9 months from filing.
7. **Expert Witness Opinion (if required):** 4–6 months.
8. **Final First-Instance Judgment:** 14–18 months from filing.
9. **Bailiff Seizure and Pay-out:** 1–3 months post-judgment.

Section F — Risks and Downsides

1. The Adverse Cost Rule (Odpowiedzialność za wynik procesu)

Under **Art. 98 § 1 KPC**, the losing party is obliged to reimburse the winning party's necessary litigation costs.¹⁹ If the creditor sues Waldemar and the court rejects the joint liability theories, the creditor will be ordered to pay Waldemar's statutory attorney fees, which are fixed at **5,400.00 PLN**.¹⁹

2. Defamation and Infringement of Personal Rights (Naruszenie Dóbr Osobistych)

Under Polish law, accusing an entrepreneur of fraud is a serious allegation. While allegations made strictly within court pleadings (*pozew*) are legally privileged and protected, any pre-suit demand letters sent to Waldemar's business partners, landlord, or customers accusing him of "co-perpetrating fraud" can trigger a major counter-claim under **Art. 24 KC** [Context].

Waldemar could seek:

- An injunction to halt communications.
- Damages for loss of business reputation.
- A public apology published at the creditor's expense.

3. Procedural Delays

Adding Mateusz as a co-defendant in a traditional suit requires cross-border service to Eindhoven, Netherlands, under EU Service Regulation 2020/1784 [Context]. While Waldemar can be served in Kraków within weeks, the court will not proceed to a joint trial or issue a joint judgment until Mateusz has been successfully served abroad [Context]. This cross-border requirement can delay the first hearing by 4 to 6 months.

Section G — Strategic Synthesis

Actionable Recommendation

The analyst recommends **Option C: Unified Traditional Civil Lawsuit in Sąd Okręgowy w**

Krakowie, initiated via the Art. ^{505³⁷} KPC Procedural Bridge, combined with a parallel Supplementary Criminal Complaint.



1. **Do Not Amend the EPU:** Avoid attempting to amend the active EPU case. This will result in immediate rejection or procedural delay.²⁴
2. **Let the EPU Discontinue:** Allow the EPU case to proceed to its inevitable discontinuation due to failed service at Mateusz's virtual office.²⁶
3. **File a Unified Kraków Lawsuit:** Within exactly 3 months from the issuance of the EPU discontinuation order, file a single, unified civil lawsuit against both Mateusz and Waldemar in Sąd Okręgowy w Krakowie.²⁸ This strategy secures two key advantages:
 - It preserves the April 8, 2026 priority date against Mateusz.²⁸
 - It fully credits the 1,937.50 PLN EPU court fee.²⁸
4. **Move for an Injunction:** File a motion for interim security (*wniosek o zabezpieczenie*) under Art. 747 KPC alongside the unified lawsuit to freeze Waldemar's bank accounts and place a mortgage on his Kraków properties before he is served.³⁷
5. **Expand the Criminal Track:** File a supplementary criminal complaint to the prosecutor, naming Waldemar as a suspect under Art. 286 § 1 KK.¹⁶ This leverages

state investigative powers to subpoena bank records and secure an immediate criminal asset freeze (*zabezpieczenie majątkowe*).¹⁶

Decision Matrix

The decision matrix below outlines the tactical response based on the primary debtor's behavior.

Scenario	Mateusz's Behavior	Tactical Response	Strategic Effect
Scenario 1	Mateusz is Cooperative (Enters EPU settlement)	Complete the EPU settlement; pause the Waldemar lawsuit.	High recovery speed, low litigation cost.
Scenario 2	Mateusz is Silent (EPU service fails at virtual office)	Proceed with unified Kraków suit within the 3-month window.	Preserves priority; brings Waldemar's liquid assets into play. ²⁸
Scenario 3	Mateusz Contests EPU (Files sprzeciw, EPU discontinued)	Proceed with unified Kraków suit within the 3-month window.	Preserves priority; forces a joint trial against both debtors. ²⁷

Final Assessment

A seasoned Polish civil litigator specializing in asset recovery (*windykacja*) would strongly advise against waiting for post-judgment *actio pauliana* litigation. Relying on an *actio pauliana* requires proving asset transfers that may have been obscured or structured as cash transactions, adding months of separate litigation.²¹ Instead, the attorney would advise adding Waldemar as a co-defendant directly under **Art. 422 KC (Aider/Beneficiary)** in the primary civil suit.⁷ By presenting Waldemar's emails alongside an immediate bank account freeze under **Art. 747 KPC**, the creditor establishes immediate leverage over the only local, asset-rich party, forcing a rapid settlement or enabling swift, successful post-judgment enforcement.³⁷

Ready-to-Paste Browser-Agent Prompts

These prompts are designed to be executed in Polish-language databases to extract critical evidence regarding Waldemar's active sole proprietorship and tax status.

Prompt 1: Extract Waldemar's Active CEIDG Record

Go to the official CEIDG search engine URL:

<https://aplikacja.ceidg.gov.pl/CEIDG/CEIDG.Database/Card/Search.aspx>

Perform the following steps:

1. Locate the NIP search input field labeled "NIP" (Tax Identification Number).
2. Input the value "7752083995" into the NIP field.
3. Solve any CAPTCHA manually if prompted, or instruct the browser agent to wait for manual resolution.
4. Click the search button labeled "Szukaj" (Search).
5. From the results page, locate the entry "WALDEMAR ŁOPATA 3d Kraków" and click on the "Szczegóły" (Details) link to open the full company card.
6. Extract and print the following fields:
 - o "Adres pocztowy" (Postal address)
 - o "Adresy dodatkowych miejsc wykonywania działalności" (Addresses of additional business locations)
 - o "Data rozpoczęcia wykonywania działalności gospodarczej" (Date of commencement of business activity)
 - o "Przeważające PKD" (Primary business classification code)
 - o "Status" (Current status of the business - active/suspended/terminated)
7. Save the page as a PDF file and return the extracted text.

Prompt 2: Verify Waldemar's Bank Accounts on the Tax White List (Biała Lista)

Go to the official Ministry of Finance White List search URL:

<https://www.podatki.gov.pl/wykaz-podatnikow-vat-wyszukiwarka>

Perform the following steps:

1. Select the search option labeled "NIP" (default selection).
2. Locate the input field for NIP and enter "7752083995".
3. Locate the date selector field and ensure the current date is selected.
4. Click the search button labeled "Wyszukaj" (Search).
5. Extract and print the following details from the generated report:
 - o "Nazwa firmy" (Company name)
 - o "Status podatnika VAT" (VAT registration status - active/exempt)
 - o "Numery rachunków bankowych" (All registered bank account numbers associated with this NIP)
 - o "Nazwy banków prowadzących rachunki" (Names of the banks holding these accounts, if listed)
6. Take a screenshot of the results page showing the verification time stamp and return the extracted data.

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